

Burra Venkata Niranjan vs Burra Somidevi Kanthiranjani on 18 October, 2022

Author: Battu Devanand

Bench: Battu Devanand

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THE HON'BLE SRI JUSTICE BATTU DEVANAND

CIVIL REVISION PETITION NO.2064 of 2022

O R D E R:

This Civil Revision Petition is filed challenging the Order dated 23.07.2019 in I.A.No.90 of 2019 in H.M.O.P.No.235 of 2018 on the file of the Senior Civil Judge, Tanuku.

02. Heard learned Counsel for the Petitioner and perused the material available on record.

03. The Petitioner is the Petitioner and the respondent is the respondent in HMOP No.235 of 2018.

04. The case of the petitioner is that the petitioner filed HMOP No.235 of 2018 for grant of decree of divorce. Thereafter, the respondent filed I.A.No.90 of 2019 seeking to grant an amount of Rs.25,000/- towards monthly maintenance and Rs.25,000/- towards legal expenses. The trial Court by Order dated 23.07.2019 granted an amount of Rs.10,000/- towards maintenance to the respondent and her son. Aggrieved by the same, the petitioner preferred the present Civil Revision Petition.

05. Learned counsel for the petitioner further submits that the Order of the trial Court is contrary to law, weight of evidence and probabilities of the case. The trial Court failed to consider the Counter filed by the petitioner to the application filed under Section 24 of the Hindu Marriage Act. The trial Court ought to have considered the counter filed by the petitioner admitting that his salary is only Rs.24,000/- but not Rs.30,000/- as mentioned in the Order, which is fatal to the case of the petitioner. The trial Court strangely referred the contentions of the petitioner differently and suggested for maintenance of Rs.10,000/- and on such suggestion, the petitioner stated that he has no objection to grant interim maintenance of Rs.10,000/- to the petitioner and her son in the said application. The trial Court ought not to have compelled the parties to pay certain manner despite defense on the record, which is not sustainable under law and liable to be remitted to the Court for fresh consideration basing on his defense on its own merits, else prejudice would be caused to the petitioner. The trial Court ought not to have granted maintenance for children without asking any such relief.

o6. Having heard the submissions of the learned counsel for the Petitioner and upon perusal of the material available on record, it appears that the petitioner filed HMOP No.235 of 2018 and in the said HMOP, the respondent filed I.A.No.90 of 2019 seeking for monthly maintenance and for legal expenses. In its order the trial Court held that the petitioner fairly conceded that the petitioner is drawing Rs.30,000/- per month and when suggested in open Court, he represented that he has no objection to pay an amount of Rs.10,000/- per month towards maintenance to the respondent and her son. The respondent is not having any independent source of income and she is having a son aged one year and both are depending on her father, who is a purohit. Therefore, this Court is of the considered opinion that the amount awarded by the trial Court is just and reasonable.

o7. Therefore, this Court do not find any irregularity or illegality in the order passed by the trial Court in I.A.No.90 of 2019 in HMOP No.235 of 2018, and accordingly, this Court is not inclined to interfere into the Order passed by the trial Court. Therefore, the present Civil Revision Petition is liable to be dismissed.

o8. Accordingly, this Civil Revision Petition is dismissed.

o9. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any, pending in this petition shall stand closed.

JUSTICE BATTU DEVANAND Dt. 18.10.2022 eha THE HON'BLE
SRI JUSTICE BATTU DEVANAND CIVIL REVISION PETITION NO.2064 of 2022 Dt. 18-10-2022
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